

Tentative Rulings and Resolution Review Hearings

June 1, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

ALLEN VS. SHRANER, ET AL.

CASE NUMBER: 25CV-0206889

Tentative Ruling on Motion to Compel Responses: Defendants Michael J. Schraner and Janet Schraner move to compel Plaintiff Michael D. Allen provide responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production, Set One. Despite being properly served, Plaintiff did not oppose the motion.

A party has thirty days after service to respond to a Request for Production, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a) and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a) and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to do so, Defendants' counsel sent a letter to Plaintiff on two occasions attempting to meet and confer.

Defendants have provided evidence that Plaintiff was served by mail on January 27, 2026 with Defendants' Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production, Set One. It is now more than thirty days since Plaintiff was served and Plaintiff has not responded to any of the propounded discovery. The Court finds that there is good cause justifying the discovery sought by Defendants.

Sanctions. CCP §§ 2031.300(c) and 2030.290(c) only provide for sanctions when an unsuccessful opposition is made. However, the Court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery even when no opposition was filed. CRC 3.1348. Defendant seeks \$1,260 in monetary sanctions which is comprised of a \$60 motion fee and attorney time of four hours. Counsel requests the rate of \$300 per hour which the Court finds to be reasonable. Monetary sanctions are awarded to Defendants in the amount of \$1,260.

The motion is **GRANTED**. Plaintiff is **ORDERED** to provide verified discovery responses within twenty days of the service of the Notice of Entry of Order. Objections are waived. Defendants' request for monetary sanctions is **GRANTED** in the amount of \$1,260. Defendants did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendants are to prepare the Order.

ASBE VS. ROBBINS

CASE NUMBER: 26APSC-0005

Tentative Ruling on Motion to Set Aside Judgment: Defendant John Robbins moves to set aside the judgment entered against him following Defendant's nonappearance at a trial de novo on March 30, 2026. Despite being properly noticed of today's hearing, Plaintiff Kelly Asbe did not file an Opposition.

Defendant moves under CCP § 437(b) to have the judgment set aside because the Notice of Appeal contained an incorrect address for Defendant, which resulted in the Notice of Hearing being mailed to the wrong address. The Notice of Hearing was returned to the court as undeliverable and Defendant and his counsel have declared that they had no notice of the hearing date until after judgment was entered. CCP § 473(b) reads, in part, "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." The typographical error in the Notice of Appeal, filed by Defendant, was a mistake that resulted in a judgment being taken against Defendant. Defendant had no notice of the hearing date for the trial de novo on March 30, 2026. Once Defendant learned that a judgment had been entered against him, he acted diligently in seeking to have the judgment set aside.

The motion is **GRANTED**. The judgment entered on March 30, 2026, is set aside pursuant to CCP § 473(b). The parties are ordered to appear to set a new hearing date for the trial de novo. If both parties do not appear, the Court will select a hearing date. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

BANK OF AMERICA, N.A. VS. METZGER

CASE NUMBER: 25CVG-00681

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement: Plaintiff Bank of America, N.A. seeks to vacate the dismissal entered on July 22, 2025, and enforce the Stipulation Agreement filed on July 7, 2025. Despite being properly noticed, Defendant Lauren Adriana Marie Metzger did not file an Opposition.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Stipulation Agreement filed in this matter on July 7, 2025. The request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The Stipulation Agreement filed with the Court on July 7, 2025, was executed by both parties. The terms of the agreement are straightforward. The parties stipulated to a judgment of \$7,334.98 which consists of \$6,791.37 in principal and \$543.61 in costs. The agreement calls for a payment of \$488.98 on or before April 29, 2025, followed by minimum monthly payments of \$489 starting May 29, 2025, until fully paid. The parties also agreed that following the dismissal, Plaintiff may reopen the case to enter judgment in the event of Defendant's failure to comply with the terms of payment described in the agreement.

The declaration of attorney Anthony DiPiero establishes that Defendant has paid a total of \$4,889.98 and has not made a payment since January 25, 2026. Plaintiff has sufficiently shown that Defendant breached the terms of the agreement by failing to make payments as owed. Plaintiff requests entry of judgment in the amount of \$2,505.00 which includes remaining principal in the amount of \$1,901.39 and court costs in the amount of \$603.61. While the Memorandum of Costs filed on May 7, 2026 includes \$603.61 in costs, the parties stipulated to a specific amount of \$543.61 for costs, not costs pursuant to a Memorandum of Costs. Therefore, the judgment will be \$2,445.00 which is comprised of the remaining principal and costs in the amount of \$543.61.

The Motion is **GRANTED**. The dismissal is set aside and Judgment for the Plaintiff will be entered in the amount of \$2,445.00. Plaintiff provided a proposed Order and proposed Judgment, both of which will be modified to reflect the Court's ruling.

IN RE: CARTER

CASE NUMBER: 26CV-0210136

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Michael Wilson Carter seeks to change his name to Michael Sea. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

CHATHA, ET AL. V. TORNADO ALLEY TURBO, INC., ET AL.

CASE NUMBER: 22CV-0200483

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Amitoj Sandhu's claims. The Petition was filed by the minor's mother/Guardian Ad Litem Sakhjit Sandhu. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. A hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court finds good cause to excuse the appearance of the minor. The Court will ask counsel to voir dire Petitioner regarding the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order Approving Compromise that was received on May 27, 2026. **An appearance by the Petitioner is necessary on today's calendar.**

FALL RIVER VALLEY VOLUNTEER FIRE DEPARTMENT, ET AL. VS. FALL RIVER VALLEY FIRE PROTECTION DISTRICT, ET AL.

CASE NUMBER: 24CV-0206286

Tentative Ruling on Motion for Judgment on the Pleadings: Defendants Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan move for judgment on the pleadings pursuant to CCP § 438(c)(1)(A). Plaintiffs Fall River Valley Volunteer Fire Protection Department and McArthur Volunteer Fire Department, Inc. oppose the Motion.

Meet and Confer. CCP § 439(a) requires the moving party to meet and confer before filing a motion for judgment on the pleadings. The moving party shall file a declaration showing the meet and confer efforts. CCP § 439(a)(3). The Declaration of John Kenny satisfies this requirement.

Request for Judicial Notice. Defendant requests the Court take judicial notice of Shasta Local Agency Formation Commission Resolution 2020-09 and Fall River Valley Volunteer Fire Department's California Secretary of State Corporation filing dated 3/18/22. The request is denied. The request was made on May 22, 2026, along with the Reply brief. Considering these materials would be prejudicial to Plaintiff, who did not have the opportunity to oppose.

Merits of Motion. CCP § 438(c)(1)(A) provides a plaintiff may move for judgment on the pleadings if the complaint states sufficient facts to constitute a cause of action and the answer does not state facts sufficient to constitute a defense to the complaint. The grounds for the motion shall appear on the face of the challenged

pleading or from any other matter of which the court may take judicial notice. CCP § 438(d).

“A motion for judgment on the pleadings, like a general demurrer, challenges the sufficiency of the plaintiff’s cause of action and raises the legal issue, regardless of the existence of triable issues of fact, of whether the complaint states a cause of action. [Citation.]” *Brownell v. Los Angeles Unified School Dist.* (1992) 4 Cal.App.4th 787, 793. The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer. *Baughman v. State of California* (1995) 38 Cal.App.4th 182, 187. “We treat the pleadings as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Ibid.*)” *Ellerbee v. County of Los Angeles* (2010) 187 Cal.App.4th 1206, 1213-1214.

Plaintiff’s Complaint alleges causes of action for: 1) Breach of Contract, 2) Breach of Implied Covenant of Good Faith and Fair Dealing, 3) Conversion, 4) Negligence, and 5) Declaratory Relief. Defendant’s Motion is made on the grounds that the Complaint does not state sufficient facts to constitute a cause of action for any relief sought.

First, Second, and Fourth Causes of Action. Plaintiff’s First and Second Causes of Action, for Breach of Contract and Breach of Covenant of Good Faith and Fair Dealing, are based on an alleged breach of contract. Plaintiffs allege the contract was breached “on or about October 2023” (Complaint p. 3, ln. 19). Plaintiff’s Fourth Cause of Action for Negligence is vague and uncertain but appears to also relate to the alleged contract.

Plaintiff did not allege the presentation of a government claim. “Government Code section 900 et seq. establishes certain conditions precedent to the filing of a lawsuit against a public entity. As relevant here, a plaintiff must file a timely claim for money or damages with the public entity. (§ 911.2.) The failure to do so bars the plaintiff from bringing suit against that entity. (§ 945.4.)” *State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1237. Plaintiff’s failure to allege compliance with the government claim presentation requirement entitles Defendant to judgment on the pleadings on the First, Second, and Fourth Causes of Action for failure to state sufficient facts to constitute a cause of action. Plaintiff concedes this point in the Opposition brief, stating “Defendants correctly assert that the Complaint fails to state facts showing that a claim was submitted.” (Opp. p. 4, ln. 24-25.) Plaintiff argues that Plaintiffs have submitted government claims and that amendment should be permitted.

Plaintiff generally argues that Plaintiff “can surely remedy most, if not all, of any issues raised by Defendants in an amended complaint specifically as they relate to additional facts, such as, names, dates, etc. that would support the causes of action. For example, an amended complaint will have the agreements attached as exhibits resolving that issue. It will also set forth facts about the claims process.” (Opp. p. 5, ln. 8-12.) The time and place for setting forth those arguments is here, in Plaintiff’s Opposition.

Defendant has carried their burden of establishing that Plaintiff has failed to state sufficient facts to constitute a cause of action against Defendants. Plaintiff has failed to rebut any of these arguments, and only generally argues that amendments could cure the defects in the Complaint.

Third Cause of Action. Plaintiff’s cause of action for conversion is not permitted by statute. Gov. Code section 815 provides that a public entity is not liable for an injury arising out of an act or omission of the public entity or a public employee or any other person, unless otherwise provided by statute. Here, Plaintiff’s Complaint alleges Defendants Gomes and Morgan were District employees acting in the scope of their employment. The common law cause of action for conversion is unsupported by an allegation of any statutory grounds for liability against the public entity or its employees.

Fifth Cause of Action. Plaintiff’s cause of action for declaratory relief is derivative of the first through fourth causes of action. As discussed above, each of the first through fourth causes of action fail to state sufficient facts to constitute a cause of action. Therefore, the derivative fifth cause of action also fails.

Leave to Amend: "In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." *Gami v. Mullikin Medical Ctr.* (1993) 18 Cal.App.4th 870, 876. After a judgment on the pleadings is granted, the same standards apply in granting leave to amend as for demurrers and leave is routinely granted. See Code Civ. Proc., § 438(h); *Virginia G. v. ABC Unified Sch. Dist.* (1993) 15 Cal. App. 4th 1848, 1852 [holding that when a motion for judgment on the pleadings is granted, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment].) If leave to amend is granted, the party against whom the motion is granted must be given 30 days to file an amended pleading. (Code Civ. Proc., § 438(h)(2).) If, as Plaintiff represents, Plaintiff did present timely government claims as required by Gov. Code section 900 et seq., then there is a reasonable possibility that the Complaint can be amended to state a cause of action.

The Motion for Judgment on the Pleadings is **GRANTED** with leave to amend. Plaintiff has 30 days leave to amend from notice of entry of order. A proposed order has been lodged and will be modified.

IN RE: HARDING

CASE NUMBER: 26CV-0210051

Tentative Ruling on Petition for Change of Name: Petitioner Katie Anna Harding seeks to change her name to Katie Anna Smith. Petitioner also seeks to change the last name of her three minor children. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted.

Additionally, when a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). If the non-petitioning parent lives out of state, service may be accomplished by certified mail. CCP §§ 415.10 and 415.40. Here, the fathers are not listed in the Petition. However, three Proofs of Service were filed indicating that Eric Stock, Damien Harding, and Anthony Retamoza were served by mail at addresses in California. If these individuals are the fathers of the minors, they will need to be personally served.

An appearance by Petitioner is necessary on today's calendar to confirm the names of the fathers and to select a new hearing date. Petitioner will need to obtain an Amended Order to Show Cause with the new hearing date and effect personal service on each father no less than 30 days prior to the continued hearing date. Additionally, Petitioner will need to provide the original Certificate of Publication.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Reconsideration: Plaintiffs Tiffanie Jones, Kim Harmon, and Stephen Huston move for reconsideration of a ruling made on Defendant Sally Taylor's Motion to Terminate the Case on May 11, 2026. While the motion was timely filed per CCP § 1008, Plaintiffs have not complied with CCP § 1005(b) which requires that the moving papers be filed and served at least sixteen court days prior to the hearing. The motion was filed on May 18, 2026 for a hearing date on June 1, 2026. This is untimely. The Proof of Service contained within the motion does not reflect how or when the moving papers were served, is not signed, and not dated. The Motion for Reconsideration is **DENIED** for being filed untimely and because there is no Proof of Service indicating that Defendant was noticed with the motion. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order.

MARTINEZ VS. PARSON

CASE NUMBER: 25CV-0208252

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 15, 2026 to Plaintiff Timoteo Martinez and counsel Legal Needs, APC for failure to timely serve Defendant as required by California Rules of Court, Rule 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on July 22, 2025 and no Proof of Service of Summons has been filed. Plaintiff filed a late response to the OSC explaining that Plaintiff is engaged in settlement discussions and is also working diligently to effectuate service. Plaintiff requests a 60-day continuance. The OSC is **DISCHARGED**. No sanctions will be imposed. However, the Court expects proof of service to be on file no later than the next review date. This matter is continued to **Monday, August 3, 2026 at 9:00 a.m. in Department 63** for review regarding status of service. **No appearances are necessary on today’s calendar.**

IN RE: MEIER

CASE NUMBER: 26CV-0210082

Tentative Ruling on Petition for Change of Name: Petitioner Denae Ann Meier seeks to change her name to Dean Ann Cortazzo. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

PEOPLE OF THE STATE OF CALIFORNIA VS. MCCON

CASE NUMBER: 25CVG-02609

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant United States Fire Insurance moves to set aside summary judgment, discharge forfeiture, and exonerate bail. No opposition has been filed. A nearly identical Motion was filed in this matter on January 27, 2026. It was on calendar for hearing on February 23, 2026 and again on April 27, 2026. Both times, the Court informed Defendant that personal service on the County was necessary in order for the motion to proceed. The Motion was denied without prejudice. Defendant filed this Motion on May 6, 2026. There is no proof of service indicating that the County has been personally served. The motion is **DENIED** without prejudice. The proposed order will be modified.

PONCIANO, ET AL. VS. MARX, ET AL.

CASE NUMBER: CVCV20-0194371

Tentative Ruling on Motion for a New Trial: Defendants move for a new jury trial. Plaintiffs oppose the motion.

A jury trial as to damages ended in a verdict for Plaintiffs on January 15, 2026. Judgment was entered on March 30, 2026. Defendants filed the present Second Motion for a New Trial on May 1, 2026. Notice of Entry of Judgment was filed on April 17, 2026. As a preliminary matter, the motion was timely made per CCP § 659(a)(2). The burden of proof is on the moving party who must establish their position by a preponderance of the evidence. *Price v. Hibbs* (1964) 225 Cal. App. 2d 209, 215.

Merits. The grounds upon which a verdict may be vacated are enumerated in CCP § 657 which reads, in part:

The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

...

5. Excessive or inadequate damages
6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.
7. Error in law, occurring at the trial and excepted to by the party making the application.

CCP § 657.

Defendants Notice of Motion identifies three grounds for a new trial; specifically, excessive or inadequate damages, insufficient evidence and an error in law. CCP § 657(5-7). Defendants argue that the Court misinterpreted or misapplied the 1996 Stipulated Judgment and that the prior 1924 and 1935 Decrees provided Defendants with the right to enter Plaintiffs property. Based on that purported right of entry, Defendants contend that it was an error in law to find a trespass. The Court's May 30, 2026, Judgment incorporated a prior ruling on Plaintiffs' Motion for Partial Judgment Notwithstanding the Verdict. That ruling addressed the prior Decrees and Stipulated Judgment and found that the document did not give Defendants the right to construct new irrigation and that Defendants had "no authority to add structures such as log or riffle and they had no authority to enter and damage Plaintiffs' property in whatever way they choose as long as it related to their irrigation." Defendants provided no authority to show that the documentations were misinterpreted by the Court. Accordingly, Defendants have failed to meet their burden to show an error in law. An independent review of the Decrees and Stipulated Judgment also does not show there was any error in law in the Court's prior interpretation. As for the issues of excessive damages or insufficient evidence, Defendants did not address either issue in their memorandum of points and authorities. The Court finds that Defendants have not established an error in law, excessive damages or insufficient evidence that would warrant a new trial.

Sanctions. In their opposition, Plaintiffs request sanctions in the amount of \$3,045 pursuant to CCP § 128.5. Plaintiffs take the position that the sanctions are warranted based on the frivolous nature of the motion. While the Court ultimately disagrees with Defendants' position, there has been an insufficient showing that the motion was frivolous or made in bad faith to warrant sanctions. The request for sanctions is denied.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the denial.

SCHJOTH, ET AL. VS. LYNCH
CASE NUMBER: 25CV-0208162

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 6, 2026 to Plaintiffs Timothy James Schjoth, Zachary Kirk, and Christopher Schjoth and counsel Law Offices of Willoughby & Associates for failure to timely seek entry of default as required by CRC 3.110(g). "If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed. The court may issue an order to show cause why sanctions should not be imposed if the plaintiff fails to timely file the request for the entry of default." CRC 3.110(g). Proof of Service of Summons was filed on October 14, 2025 reflecting service on Defendant Nicholas David Lynch on October 1, 2025. Default should have been entered over six months ago. Plaintiff did not file a written response.

Without sufficient excuse for the delay, sanctions are imposed in the amount of \$250 against Plaintiff and counsel. The clerk is directed to prepare a separate Order of Sanctions. **An appearance is necessary on today's calendar to explain the delay.**

SHANE HUGHES CONSTRUCTION, INC. VS. BUSH

CASE NUMBER: 23CV-0203722

Tentative Ruling on Motion to Restore Status Quo Ante: Plaintiff Shane Hughes Construction, Inc. moves to stay the matter and return it to the status quo ante as of March 9, 2026. The motion is based on a bankruptcy filing by Defendant Amber Bush. A Notice of Stay of Proceedings (Judicial Council form CM-180) has not been filed. This is a mandatory form. Additionally, the Court has not been provided with any documents related to the bankruptcy case or the bankruptcy case number. While Plaintiff listed Exhibits 1-4 in the moving papers, no exhibits were provided. Without this information, the Court is not able to stay the matter or grant the motion. However, should proper proof be provided, the Court intends to stay the matter as of the date of the bankruptcy filing.

Plaintiff is directed to file a Notice of Stay of Proceedings with a copy of the Notice of Commencement of Case, the bankruptcy petition, or other document showing that the stay is in effect, and showing the court, case number, debtor, and petitioners. Ruling on the motion is **DEFERRED**. The Court intends to rule on the motion when the Notice of Stay of Proceedings has been filed, or on June 15, 2026, whichever is sooner. The matter will be on calendar on **Monday, June 15, 2026 at 9:00 a.m. in Department 63** for status of the case and potential bankruptcy stay. The clerk is directed to vacate the July 6, 2026 review hearing.

WILLIAMS VS. FOUNDATION PHYSICIANS MEDICAL GROUP, ET AL.

CASE NUMBER: 22CV-0201099

Tentative Ruling on Notice of Motion and Motion to Modify Designation of Record Filed by Plaintiff: Defendants, Foundation Physicians Medical Group, Inc., Dignity Health Medical Foundation, Commonspirit Health, and Bradley Walker, seek to modify the designation of record from an appendix to the clerk's transcripts regarding the appeal filed by Plaintiff, Shawni Williams. Plaintiff did not file an opposition.

CRC 8.124 governs the rule regarding the election and use of an appendix in lieu of clerk's transcripts on appeal. CRC 8.124(a)(1) specifically provides,

“Unless the superior court orders otherwise on a motion served and filed within 10 days after the notice of election is served, this rule governs if:

- (A) The appellant elects to use an appendix under this rule in the notice designating the record on appeal under rule 8.121; or
- (B) The respondent serves and files a notice in the superior court electing to use an appendix under this rule within 10 days after the appellant's notice designating the record on appeal is filed and no waiver of the fee for a clerk's transcript is granted to the appellant. If the appellant has a fee waiver, the respondent cannot elect an appendix instead of a clerk's transcript.

Plaintiff filed a Notice of Designation electing to use an appendix on April 3, 2026. The notice was served by electronic service on April 2, 2026. The present motion was filed on April 14, 2026, 12 days after the motion was served. CCP § 1010.6(a)(3) allows electronic service of a document that may be served by mail or fax and provides a two-day extension for any act or response to be made. Here, because the Notice of Designation was served by electronic service, Defendants had 12 days to file the present motion. The motion was timely filed. Plaintiff has not opposed the motion. Defendants have established good cause to support the use of the clerk's transcripts in lieu of an appendix.

The Motion is **GRANTED**. The clerk's transcript shall be provided to the Court of Appeal as record of the documents filed in the superior court pursuant to CRC 8.122. Defendants provided a proposed Order that will be executed by the Court.

9:00 a.m. – Review Hearings

BERG, ET AL. VS. U.S. BANK, ET AL.

CASE NUMBER: 24CV-0206475

This matter is on calendar for review regarding status of arbitration. At the prior hearing on April 27, 2026, the parties were ordered to submit Status Statements at least five court days prior to today's hearing. Defendant has submitted a Status Statement but Plaintiff has not. Defendant's Statement indicates there has been very limited mail correspondence. **The parties are ordered to appear to provide the Court with the status of the arbitration.**

CALIFORNIA CAPITAL INSURANCE COMPANY VS. BROWN

CASE NUMBER: 25CV-0207412

This matter is on calendar for review regarding status of responsive pleadings and trial setting. This matter is not at issue. Cross-Defendants California Capital Insurance Company and Coldwell Banker Property Management have not filed answers to the Cross-Complaint. This issue was previously raised by the Court at the last two hearings. **An appearance is necessary on today's calendar to provide the Court with a status of the pleadings and to provide an explanation for the delay in getting this matter at issue.**

JS MECHANICAL, INC. VS. LAFF, LLC, ET AL.

CASE NUMBER: 25CV-0207114

This matter is on calendar for review regarding status of the Cross-Complaint and trial setting. The Court notes that Cross-Defendant JS Mechanical, Inc. filed an Answer to Laff, LLC's Cross-Complaint on February 2, 2026. However, there is no proof of Service as to Cross-Defendant Jack A. Saunders, Jr. who has not filed a responsive pleading. At the prior review hearing on March 30, 2026, the Court ordered Cross-Complainant Laff, LLC to get the Cross-Complaint at issue prior to today's hearing. Nothing has been filed since the prior hearing date. **An appearance is necessary on today's calendar to provide the Court with a status of service of the Cross-Complaint.**

PLUMAS BANK VS. MENDOZA, ET AL.

CASE NUMBER: 25CVG-01147

This matter is on calendar for status of judgment. Plaintiff's Motion for Judgment on the Pleadings was granted on January 5, 2026. Plaintiff submitted a proposed Clerk's Judgment that was returned by the clerk's office. This matter is continued to **Monday, July 20, 2026, at 9:00 a.m. in Department 63** for review regarding status of judgment. Plaintiff shall submit a Judgment at least five court days prior to the continued hearing date. If a judgment is on file, the review hearing date will be vacated. **No appearance is necessary on today's calendar.**

STEVEN, ET AL. VS. PETERSON

CASE NUMBER: 24CV-0204537

This matter is on calendar for review regarding status of judgment or dismissal. Plaintiffs filed a Status Conference Statement indicating that settlement negotiations through the mediator have stalled. The parties are pursuing discovery and discussion possible arbitrators. In light of the foregoing, this matter is continued to **Monday, October 5, 2026, at 9:00 a.m. in Department 63** for review regarding status of settlement and arbitration. Counsel shall file a Status Statement at least five (5) court days prior to the continued hearing date. **No appearance is necessary on today's calendar.**

WAGNER VS. LLOYD

CASE NUMBER: CVCV21-0198602

This matter is on calendar for review for status of appointment of referee. On April 8, 2026, the Court issued a statement of decision providing that the Court would appoint a referee of the parties' choosing to facilitate the sale of the real property. No request to appoint a referee has been submitted. **The parties are ordered to appear to provide the Court with a status of referee and sale of the property.**

YOUNG, ET AL. VS. CHRISTENSEN, ET AL.

CASE NUMBER: 24CV-0205527

This matter is on calendar for review regarding status of minor claimant. The parties have submitted a Joint Status Report indicating that they anticipate the filing of minor's compromise petition in the near future to resolve this matter. This matter is continued to **Monday, December 7, 2026, at 9:00 a.m. in Department 63** for review regarding status of the case. The parties shall file a Status Statement at least five (5) court days prior to the continued hearing date. **No appearance is necessary on today's calendar.**